

QUICKREWARD ENDOWMENT LIFE INSURANCE PLAN (1-YEAR) CONTENTS

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「極蓄賞」人壽保險計劃(一年)

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The terms and conditions of this Policy are as follows:

A. GENERAL PROVISIONS

1. MEANINGS AND DEFINITIONS

In this Policy, Hang Seng Insurance Company Limited is referred to as "the Company", "we", "our" or "us" and the Policyholder is referred to as "you" or "your".

"Application" means your application for this Policy and includes any statements or representations made by you in relation to this Policy.

"Basic Plan" means the benefit specified as Basic Plan in Policy Schedule 1.

"Beneficiary(ies)" means the Beneficiary(ies) designated under provision A9.

"Benefit Cessation Date" means the date specified as Benefit Cessation Date in Policy Schedule 1.

"Death Benefit" means at any time subject to provisions A2(c) and A4, an amount calculated in accordance with provision A10 and payable upon the death of the Life Insured.

"Guaranteed Cash Value" means the amount derived from the tabular cash values at each end of Policy Year shown in Policy Schedule 2 and is calculated based on the relevant Guaranteed Cash Value at Maturity at any time.

"Guaranteed Cash Value at Maturity" means the amount specified as Guaranteed Cash Value at Maturity in Policy Schedule 1.

"Hong Kong SAR" means the Hong Kong Special Administrative Region of the People's Republic of China.

"Insurance Age" means, at any date, the age of the Life Insured or Policyholder (where applicable) on the last birthday prior to (or on the birthday which is the same day as) the Policy Date or the relevant Policy Anniversary.

"Issue Date" means the date specified as Issue Date in Policy Schedule 1.

"Life Insured" means the person named as the Life Insured in Policy Schedule 1 or any Policy Endorsements issued by us.

"Payment Currency" means the currency acceptable to us in which all payments to the Company must be made.

"Plan Currency" means the currency specified as Plan Currency in Policy Schedule 1.

"Policy" means the Application and the provisions set out in this Policy document, including the Policy Schedules, the Supplementary Benefit provisions (if any), and in any Policy Endorsements issued by us.

"Policy Anniversary" means each anniversary of the Policy Date.

以下列出本保單的各項條款及條件：

甲 一般條款

1. 含義及釋義

在本保單內，恒生保險有限公司稱為「本公司」，而保單持有人稱為「閣下」。

「申請書」指閣下就本保單而作出的申請書，並包括閣下就本保單所作出的任何聲明或陳述。

「基本計劃」指在保單附表1上列明的基本計劃。

「受益人」指在第甲9項條款所指定的受益人。

「保障終止日」指在保單附表1上列明的保障終止日。

「身故保障」指在任何時間除依照第甲2(c)項條款及第甲4項條款外，根據第甲10項條款計算之金額，並於受保人身故後支付。

「保證現金價值」指根據保單附表2上列明於每個保單完結年度之現金價值所衍生的，並在任何時間根據有關於保單期滿時之保證現金價值計算的金額。

「於保單期滿時之保證現金價值」指在保單附表1上列明的於保單期滿時之保證現金價值之金額。

「香港特別行政區」指中華人民共和國香港特別行政區。

「受保年齡」指在任何一日，受保人或保單持有人(如適用)在保單日期或有關的保單周年日當天(若生日是同一天)或之前的最後一個生日的年齡。

「簽發日期」指在保單附表1內所訂明的簽發日期。

「受保人」指在保單附表1內或本公司發出的任何保單批註所訂明之受保人。

「繳款貨幣」指所有由本公司收取款項並為本公司所接受的貨幣。

「保單貨幣」指在保單附表1內所訂明的保單貨幣。

「保單」指申請書及本保單文件，包括保單附表、附加保障條款(如有)及本公司發出的任何保單批註中列明的所有條款。

「保單週年日」指保單日期的每一個週年日。

“Policy Date” means the date specified as Policy Date in Policy Schedule 1.

“Policy Endorsement(s)” means any document(s) issued by us which set(s) out any revisions or amendments to this Policy.

“Policyholder” means the person named as Policyholder in Policy Schedule 1 or any Policy Endorsements issued by us.

“Policy Schedule” means the schedule(s) attached to this Policy and any amendments or substitutes thereto, and any new schedule(s) expressly adopted by us, in each case as notified in writing to the Policyholder.

“Policy Year” means the period from and including a Policy Anniversary up to but excluding the next subsequent Policy Anniversary. The period from and including the Policy Date up to but excluding the first Policy Anniversary is deemed to be the first Policy Year.

“Prevailing Exchange Rate” means a market-based prevailing exchange rate between the Payment Currency or the Settlement Currency (as the case may be), and the Plan Currency determined by us from time to time.

“Settlement Currency” means the currency in which all payments from the Company must be made, which is set at Plan Currency, or you may indicate to us in writing if you prefer Hong Kong Dollars. However, we have the final discretion in determining which currency applies.

“Single Premium” means the payment of premiums in one lump sum and is specified as Single Premium in Policy Schedule 1.

“Supplementary Benefit” means benefit supplement to the Basic Plan as listed under the section of Benefit Details in Policy Schedule 1 or Policy Endorsements issued by us.

“Total Premiums Paid” means for the purpose of computing the Death Benefit in provision A10, the total amount of premiums due and paid for the Basic Plan as of the date of death of the Life Insured.

Terms defined above and any other terms defined in this Policy shall have the same meaning whenever used in this Policy unless the context requires otherwise. All words in this Policy denoting the singular shall where the context permits include the plural and vice versa.

2. ENTIRE CONTRACT

- (a) The entire contract between you and us is constituted by this Policy, your Application for this Policy, any medical evidence received by us in respect of the Life Insured and any written statements and answers given to us as evidence of insurability.
- (b) Subject to provisions A2(c) and A16, no amendment to this Policy will take effect unless it is written in a Policy Endorsement or a revised Policy Schedule to be issued by us and you agree to such amendment in writing.

「**保單日期**」指在保單附表1內所訂明的保單日期。

「**保單批註**」指本公司發出更改或修訂本保單的任何文件。

「**保單持有人**」指在保單附表1內或本公司發出的任何保單批註所訂明的保單持有人。

「**保單附表**」指隨本保單發出的保單附表及其後以書面通知保單持有人的任何修訂或代替、以及本公司明確採納的任何新保單附表。

「**保單年度**」指由保單週年日當日起計至下一個接續之保單週年日(不包括此接續之保單週年日當日)。保單日期當日起計至首個保單週年日(不包括此首個保單週年日當日)的期間稱為「首個保單年度」。

「**匯率**」指由本公司不時以市場為基礎決定之繳款貨幣或結算貨幣(視情況而定)與保單貨幣的匯率。

「**結算貨幣**」指本公司支付的所有項款項所使用的貨幣，訂為保單貨幣，或閣下可以書面通知本公司閣下選擇港元。惟本公司就訂立有關結算貨幣擁有最終決定權。

「**躉繳保費**」指一筆過繳付並在保單附表1內所訂明為躉繳保費的保費。

「**附加保障**」指在保單附表1的保障詳情或本公司發出的保單批註內已附於基本計劃的附加保障。

「**已繳總保費**」就計算第甲10項條款的身故保障而言，指截至受保人身故之日所有到期及已繳的基本計劃保費總額。

除特定情況外，以上及其他部份所定義的用詞於本保單通用。於內容容許下，此保單內的單數的詞語將包括複數，反之亦然。

2. 整份合約

- (a) 閣下與本公司之間所達成的整份合約包括本保單、保單申請書、本公司接獲的任何有關受保人的健康證明及任何提供作投保證明的書面聲明及回覆。
- (b) 除本公司依照第甲2(c)及第甲16條款所作的修訂外，若非具備本公司發出的書面保單批註或經修訂的保單附表，及閣下以書面表示同意有關的修訂，本保單所作出的任何修訂將不會生效。

- (c) We may amend this Policy without your agreement if,
 - (i) any particulars contained in Policy Schedule 1 or in any written statements or answers given as evidence of insurability (in particular, relating to age, sex or smoking status) are found to be incorrect; or
 - (ii) we discover that you have, or the Life Insured has, misrepresented or omitted any facts which you or the Life Insured knew, or a reasonable person in your or the Life Insured's circumstance ought to have known, was material to our assessment of the risk of insuring the Life Insured.

If we amend the Policy under this provision A2(c), any such amendment will be contained in a Policy Endorsement to this Policy or a revised Policy Schedule and the amendment will apply retrospectively from the Policy Date to reflect the terms and conditions on which we would have issued this Policy had the full and correct information been provided, which will be determined by us in our absolute sole discretion. Notwithstanding the above, if we determine that the Life Insured would not have been eligible for insurance coverage under this Policy had the full and correct information been provided, we shall terminate the Policy and our liability will be limited to any amount paid to us by the Policyholder (excluding any interest) under this Policy less any Indebtedness.

3. INCONTESTABILITY

In the absence of fraud, and subject to provision A2(c) we will not contest this Policy during the lifetime of the Life Insured after it has been in force for one year from the Issue Date. This provision will not apply to any Supplementary Benefits.

4. SUICIDE

If the Life Insured dies by suicide, whether sane or insane, within one year of the Issue Date, our liability will be limited to any amount paid to us by the Policyholder.

5. IN FORCE

This Policy comes into force on the Policy Date and will remain in force until the earliest of (a) to (f) as follows:

- (a) the Benefit Cessation Date of the Basic Plan;
- (b) the time of death of the Life Insured;
- (c) the date this Policy is fully surrendered under provision A12;
- (d) the date this Policy terminates pursuant to the terms of any Supplementary Benefits or otherwise is cancelled, lapses or becomes void;
- (e) the date this Policy is made void by us in the following manner: we have the right to request from you various information or data to verify your identity in a way that meets the requirements of the relevant regulators pursuant to such rules or guidelines issued by such regulator, and if you do not provide such information or data within a time period as requested by us, which is reasonable in the context of such requirements, then upon the

(c) 在下列情況下，本公司可在未經閣下的同意下修訂本保單：

- (i) 任何在保單附表1或任何提供作投保證明的書面聲明或回覆內的資料(尤其是有關年齡、性別或吸煙習慣等)被發現為錯誤；或
- (ii) 本公司發現閣下或受保人誤述或隱瞞任何閣下或受保人已知的事實，或一個具備常理的人士在相同的情況下應該知道的事實，而有關事實對本公司評估承保受保人的風險評估具有重要性。

若本公司根據第甲2(c)項條款作出修訂，任何有關修訂將載於一份附於本保單的保單批註或修訂的保單附表，並從保單日期起追溯應用來修訂本保單的條款及細則，以反映本公司在考慮到全面而真確的資料下，本應簽發保單的條款及細則(本公司有絕對酌情釐定)。儘管有上述規定，倘若本公司認為若申報了全面而真確的資料下，已令受保人不符合本保單的投保資格，則本公司將終止保單，而本公司的責任將只限於發還保單持有人就本保單已繳付的任何金額(不包括任何利息)，扣除任何債項。

3. 不可異議

若非欺詐及除依照第甲2(c)項條款外，在受保人在生期間，本保單由簽發日期起達1年後，本公司不得對本保單提出異議。此項條款不適用於任何附加保障。

4. 自殺

若受保人在簽發日期起1年內自殺身亡，無論自殺時神志清醒或錯亂，本公司的責任將只限於發還保單持有人就本保單已繳付的任何金額。

5. 保單生效期

本保單視為由保單日期起生效，並持續生效直至發生下列(a)至(f)的情況(以較早者為準)為止：

- (a) 基本計劃之保障終止日；
- (b) 受保人身故當日；
- (c) 本保單根據第甲12項條款完全退保當日；
- (d) 本保單根據任何附加保障的條款下終止或在任何其他情況下取消、失效或無效之當日；
- (e) 根據以下情況本保單被視為無效的日期：本公司有權要求閣下提供各種資料或數據來證明閣下的身份，以滿足相關監管機構制定的規則或指引的要求；若閣下不能在本公司制定及有關規定項下的合理期限以內提供該資料或數據，在該期限屆滿以後，本保單將可被本公司視為無效。於該期限屆滿前，儘管於本保單任何

expiry of such time period this Policy becomes voidable by us. Prior to the expiry of such time period and notwithstanding any other provisions as stated in the Policy, we have the sole discretion to suspend or defer any transactions or provision of any services under the Policy if such identity verification remains uncompleted within such time period as stipulated in such rules and guidelines issued by such regulator; and

- (f) the date this Policy terminates pursuant to provision A14(b).

6. PAYMENT OF PREMIUM

Premiums are payable as Single Premium by any method which we make available.

If the Payment Currency is different from the Plan Currency, premiums paid will be converted to the Plan Currency at the Prevailing Exchange Rate on the date that the payment is processed.

7. OWNERSHIP

No change of the ownership of this Policy is allowed.

8. ASSIGNMENT

No assignment of this Policy is allowed.

9. BENEFICIARY

- (a) The Beneficiary(ies) designated by you under this Policy or by a declaration in writing, such Beneficiary(ies) will be entitled to the Death Benefit of this Policy.
- (b) While this Policy is in force, you may change the Beneficiary(ies) by giving us a written request in a form specified by us. A change of Beneficiary(ies) shall be effective only if approved and recorded by us.
- (c) A change of Beneficiary(ies) will be deemed effective as of the date the request is signed.

10. DEATH BENEFIT

- (a) We will pay the Death Benefit, in accordance with provision A13(a), on the death of the Life Insured and provided further that we receive the documents as set out in provision A11(b).
- (b) The Death Benefit, calculated on the date of death of the Life Insured, will be equivalent to 101% of Total Premiums Paid at the date of death.

11. DEATH BENEFIT CLAIM

- (a) If the Life Insured dies while this Policy is in force, we will pay, subject to provision A10(b), the Death Benefit to the surviving Beneficiary(ies), or if none has been designated or the designated Beneficiary(ies) has or have died before the Life Insured, to you if you are alive or your estate. If the Life Insured and Beneficiary(ies) die in circumstances rendering it uncertain that any one of them, or which of them survived the other or others, the Life Insured shall be deemed to have survived the Beneficiary(ies).

其他條款下，若未能就相關監管機構制定的規則及指引規定項下的期限內完成相關的身份驗證，本公司可自行酌情決定暫停或延遲執行本保單任何交易或提供本保單內的任何服務；及

(f) 本保單根據第甲14(b)項條款終止的日期。

6. 繳付保費

閣下可以依照本公司提供的任何方法以躉繳保費形式繳付保費。

若繳款貨幣不是保單貨幣，本公司將於處理付款當日按匯率將保費兌換為保單貨幣。

7. 持有權

本保單不容許持有權轉移。

8. 權益轉讓

本保單不容許權益轉讓。

9. 受益人

(a) 閣下根據在本保單或以書面指定的受益人，有關受益人將被視為可受益於本保單的身故保障。

(b) 在本保單生效期間，閣下可按本公司指定之表格以書面通知。只在本公司核准及記錄後，更改受益人方告生效。

(c) 更改受益人將自簽發有關更改要求當日生效。

10. 身故保障

(a) 倘若受保人死亡，本公司將按照第甲13(a)項條款支付身故保障，惟本公司須先收到第甲11(b)項條款所列的文件。

(b) 身故保障將相等於受保人身故日期計算之已繳總保費101%。

11. 身故保障賠償

(a) 若受保人在保單生效期間身故，本公司將根據第甲10(b)項條款把身故保障付予仍在生之受益人；若閣下未有指定受益人或指定之受益人於受保人身故前已身故，則付予閣下(若閣下在生)或閣下的遺產承繼人。若受保人及受益人在不能確定其身故先後的情況下身故，則當作受保人於受益人身故時尚存。

- (b) Any amount payable on the death of the Life Insured will be paid after we have received written proof of the validity of claim satisfactory to us. Proof of the validity of claim shall include:
 - (i) evidence of the death of the Life Insured and the cause of death;
 - (ii) evidence of the right of the claimant to be paid;
 - (iii) this Policy document; and
 - (iv) any other information which we may reasonably require to establish the validity of the claim.
- (c) The receipt of the Death Benefit payable under this Policy by the Beneficiary(ies), you or your estate will discharge us from any further liability under this Policy.

For the avoidance of doubt, the Company will not pay the Death Benefit if the Life Insured dies on the Benefit Cessation Date of the Basic Plan.

12. SURRENDER

At any time, this Policy may be surrendered by filing a request in our specified form for an amount equal to the Guaranteed Cash Value (if any) as at the date the surrender request is received by us. Upon surrender, the coverage under this Policy will terminate and the Company's liability under this Policy shall be discharged.

13. PAYMENT OF BENEFITS

We will make all payments under this Policy in the Settlement Currency. If the Settlement Currency is different from the Plan Currency, we shall convert such payments to the Settlement Currency based on the Prevailing Exchange Rate on the date that the settlement is processed.

14. COLLECTION AND USE OF CUSTOMER INFORMATION, FINANCIAL CRIME RISK MANAGEMENT ACTIVITY AND TAX COMPLIANCE

(a) Definitions

Terms used in this provision shall have the following meanings:

"Authorities" includes any local or foreign judicial, administrative, public or regulatory body, any government, or public or government agency or authority, any Tax Authority, securities or futures exchange, court, central bank or law enforcement body, self-regulatory or industry bodies or associations of financial service providers or any of their agents with jurisdiction over any part of the HSBC Group.

"Compliance Obligations" means obligations of any member of the HSBC Group to comply with: (a) Laws or international guidance and internal policies or procedures, (b) any demand or request from Authorities or reporting, disclosure or other obligations under Laws, or (c) Laws requiring us to verify the identity of our customers and Connected Persons.

(b) 本公司在接獲滿意的書面有效索償證明後就因受保人身故而須支付的任何款項。
有效索償證明包括：

(i) 受保人死亡及死因證明；

(ii) 索償人有權領取款項的證據；

(iii) 本保單；及

(iv) 本公司為證明索償有效性而合理要求的其他任何資料。

(c) 受益人、閣下或閣下的遺產承繼人於接受根據本保單所支付的身故保障後，本公司就本保單的其他任何責任即獲解除。

為免生疑問，若受保人於基本計劃之保障終止日身故，本公司將不會支付身故保障。

12. 退保

本保單可在任何時間以本公司指定的表格提出書面申請退保，以取得相當於本公司收到退保要求當日之保證現金價值(如有)。退保後，本公司於本保單下的責任即被解除。

13. 支付賠償

本公司將以結算貨幣支付本保單下所有款項。若結算貨幣與保單貨幣不相同，本公司將根據處理結算當日的匯率，將該款項兌換為結算貨幣。

14. 收集及使用客戶資料、金融罪行風險管理活及稅務合規

(a) 釋義

下列出現於本條款的定義詞語有下列涵義：

「**權力機關**」包括對滙豐集團任何部分具有司法權限的任何本地或外地司法、行政、公營或監管機構、任何政府，或公營或政府機關或機構、任何稅務機關、證券或期貨交易所、法院、中央銀行或執法機關，或金融服務供應商的自律監管或行業組織或協會，或彼等的任何代理。

「**合規責任**」指任何滙豐集團成員要符合下列各項的責任：(a)法律或國際指引及內部政策或程序，(b)權力機關的任何指令或要求，或法律下申報、披露或其他責任，或(c)要求本公司核實客戶及關連人士身分的法律。

“Connected Person” means a person or entity other than you whose information (including Personal Data or Tax Information) is provided by you, or on your behalf, to any member of the HSBC Group or otherwise received by any member of the HSBC Group in connection with the provision of the Services. A **Connected Person** may include, but is not limited to, any person identified as a beneficiary under this Policy, any person who is, or may be, entitled to receive a payment under this Policy, a director or officer of a company, partners or members of a partnership, any “substantial owner”, “controlling person”, or beneficial owner, trustee, settlor or protector of a trust holding or controlling (directly or indirectly) the Policy, any of your representatives, agents or nominees, or any other persons or entities with whom you have a relationship that is relevant to your relationship with the HSBC Group.

“controlling persons” means individuals who exercise control over an entity (for a trust, these are the settlor, the trustees, the protector, the beneficiaries or class of beneficiaries, and any other individual who exercises ultimate effective control over the trust, and in the case of a legal entity other than a trust, these are persons in equivalent or similar positions of control).

“Customer Information” means all or any of the following items relating to you or a Connected Person, where applicable: (i) Personal Data, (ii) information about you, your accounts, transactions, use of our products and services and your relationship with the HSBC Group, and (iii) Tax Information.

“Financial Crime” means money laundering, terrorist financing, bribery, corruption, tax evasion, fraud, evasion of economic or trade sanctions, and violations, or attempts to circumvent or violate any Laws relating to these matters.

“Financial Crime Risk Management Activity” means any action to meet Compliance Obligations relating to or in connection with the detection, investigation and prevention of Financial Crime that we or members of the HSBC Group may take.

“HSBC Group” means HSBC Holdings plc and any of its affiliates, subsidiaries, associated entities and any of their branches and offices, and **“any member of the HSBC Group”** has the same meaning.

“Laws” include any applicable local or foreign law, regulation, rule, judgment, voluntary code, directive, sanctions regime, court order, agreement between any member of the HSBC Group and an Authority, or agreement or treaty between Authorities and applicable to us or a member of the HSBC Group.

“Personal Data” means any data relating to an individual from which the individual can be identified.

“Services” includes (a) the opening and maintaining of this Policy, (b) the provision of services relating to this Policy and its termination or expiry, and (c) the maintenance of our overall relationship with you.

“substantial owners” means any individuals entitled to more than 10% of the profits of or with an interest of 10% or more in an entity either directly or indirectly.

「**關連人士**」指閣下以外的人士或單位，而其資料(包括個人資料或稅務資料)由閣下(或代表閣下)向任何滙豐集團成員提供或任何滙豐集團成員因其他與提供服務有關的原因獲得。**關連人士**可包括(但不限於)任何本保單指定為受益人的人士、任何有權或可能有權就本保單獲取付款的人士、公司董事或職員、合夥商的合夥人或合夥成員，任何「主要擁有人」、「控制人」、信託的實益擁有人、受託人、財產授予人或保障人，而信託的有關人士直接或間接地持有或控制本保單、閣下的任何代表、代理或代名人，或與閣下建立了關係的任何其他人士或單位，而該關係關乎閣下及滙豐集團的關係。

「**控制人**」指控制單位的個別人士(就信託而言，指財產授予人、受託人、保障人、受益人或各類受益人，及就信託行使最終實際控制權的任何其他個別人士。就非信託法律實體而言，指處於相等或類似控制位置的人士)。

「**客戶資料**」指所有或任何有關閣下或關連人士的下列各項(如適用)：(i)個人資料，(ii)關於閣下、閣下的戶口、交易、使用本公司產品及服務，及閣下與滙豐集團關係的資料，及(iii)稅務資料。

「**金融罪行**」指清洗黑錢、恐怖分子融資、賄賂、貪污、逃稅、欺詐、逃避經濟或貿易制裁，及違反，或意圖規避或違反有關此等事宜的任何法律。

「**金融罪行風險管理活動**」指本公司或滙豐集團成員為符合就或有關偵測、調查及防止金融罪行的合規責任而可能作出的任何行動。

「**滙豐集團**」指滙豐控股有限公司及其任何附屬公司、子公司、聯營單位及彼等的任何分行及辦事處。而「**任何滙豐集團成員**」具有相同涵義。

「**法律**」包括任何適用的本地或外地法律、法規、規則、判決、自願守則、指令、制裁制度、法院命令、任何滙豐集團成員與權力機關的協議，或權力機關之間適用於本公司或滙豐集團成員的協議或條約。

「**個人資料**」指任何與一名個別人士有關的資料而從該等資料可確定該名個別人士的身分。

「**服務**」包括(a)開立及維持本保單，(b)提供有關本保單及本保單終止或到期的服務及(c)維持本公司與閣下的整體關係。

「**主要擁有人**」指直接或間接地享有一個單位多於10%的利潤或10%或以上權益的任何個別人士。

“Tax Authorities” means Hong Kong SAR or foreign tax, revenue, fiscal or monetary authorities.

“Tax Certification Forms” means any forms or other documentation as may be issued or required by a Tax Authority or by us from time to time to confirm your tax status or the tax status of a Connected Person.

“Tax Information” means any documentation or information about your tax status and/or the tax status of any Connected Person, owner, “controlling person”, “substantial owner” or beneficial owner.

Reference to the singular includes the plural (and vice versa).

(b) COLLECTION, USE AND SHARING OF CUSTOMER INFORMATION

This provision explains how we will use information about you and Connected Persons. The Personal Information Collection Statement that applies to you and any other individuals (the **“PICS”**), also contains important information about how we and the HSBC Group will use your information and you should read this provision in conjunction with the PICS. We and members of the HSBC Group may use Customer Information in accordance with this provision and the PICS.

Customer Information will not be disclosed to anyone (including other members of the HSBC Group), other than where:

- (1)
 - we are legally required to disclose; or
 - we have a public duty to disclose; or
 - our legitimate interests require disclosure; or
 - the disclosure is made with your consent; and
- (2) it is disclosed as set out in the PICS.

COLLECTION

- (i) We and other members of the HSBC Group may collect, use and share Customer Information. Customer Information may be requested by us or a member of the HSBC Group or on our behalf or on behalf of a member of the HSBC Group, and may be collected from you or a Connected Person (or a person acting on your behalf or on behalf of a Connected Person), from other sources (including from publicly available information), and it may be generated or combined with other information available to us or any member of the HSBC Group.

USE

- (ii) We and other members of the HSBC Group may use, transfer and disclose Customer Information in connection with (1) the purposes set out in Appendix 1 (applicable to Customer Information other than Personal Data), (2) the PICS (applicable to Personal Data), and (3) matching against any data held by us or the HSBC Group for whatever purpose (whether or not with a view to taking adverse action against you) ((1) to (3) are collectively referred to as the **“Purposes”**).

「**稅務機關**」指香港特別行政區或外地稅務、稅收、經濟或金融機關。

「**稅務證明表格**」指稅務機關或本公司為確認閣下的稅務狀況或關連人士的稅務狀況而不時發出或要求提供的任何表格或其他文件。

「**稅務資料**」指關於閣下稅務狀況及／或任何關連人士、擁有人、「控制人」、「主要擁有人」或實益擁有人稅務狀況的任何文件或資料。

凡提及單數詞包括指其複數(反之亦然)。

(b) 收集、使用及分享客戶資料

本條款解釋本公司如何使用關於閣下及關連人士的資料。適用於閣下及任何其他個別人士的收集個人資料聲明(「**收集個人資料聲明**」)亦包含有關本公司及滙豐集團如何使用閣下資料的重要信息。閣下應一併閱讀本條款及收集個人資料聲明。本公司及滙豐集團成員可按本條款及收集個人資料聲明使用客戶資料。

客戶資料不會披露予任何人士(包括其他滙豐集團成員)，除非：

- (1)
 - 本公司因應法律要求作出披露；或
 - 本公司有公眾責任作出披露；或
 - 本公司因合法權益需要披露；或
 - 獲閣下同意作出披露；及
- (2) 按收集個人資料聲明所載作出披露。

收集

- (i) 本公司及其他滙豐集團成員可收集、使用及分享客戶資料。本公司或滙豐集團成員(或彼等的代表)可要求提供客戶資料。客戶資料可從閣下、關連人士(或代表閣下或關連人士的人士)或其他來源(包括公開資料)收集，亦可與本公司或其他滙豐集團成員可獲取的其他資料組合或產生。

使用

- (ii) 本公司及其他滙豐集團成員可就下列用途使用、轉移及披露客戶資料：(1)附錄1(適用於非個人資料的客戶資料)列出的用途，(2)收集個人資料聲明(適用於個人資料)，及(3)把客戶資料與本公司或滙豐集團因任何用途持有的任何資料進行核對，不論是否有意對閣下採取不利行動((1)至(3)統稱「用途」)。

SHARING

- (iii) We may (as necessary and appropriate for the Purposes) transfer and disclose any Customer Information to the recipients set out in the PICS (who may also use, transfer and disclose such Customer Information for the Purposes) and Appendix 1 (applicable to Customer Information other than Personal Data).

YOUR OBLIGATIONS

- (iv) You agree to inform us promptly, and in any event, within 30 days in writing if there are any changes to Customer Information supplied to us or a member of the HSBC Group from time to time, and to respond promptly to any request for Customer Information from us, or a member of the HSBC Group.
- (v) You confirm that every Connected Person whose information (including Personal Data or Tax Information) has been (or will be) provided to us or a member of the HSBC Group has (or will at the relevant time have) been notified of and agreed to the use, processing, disclosure and transfer of their information as set out in these policy terms, Appendix 1 and the PICS (as may be amended or supplemented by us from time to time). You and every Connected Person have (or will at the relevant time have) read and understand the PICS. You shall advise such Connected Persons that they have rights of access to, and correction of, their Personal Data.
- (vi) You consent and shall take such steps as are required from time to time for the purposes of any applicable data protection law or secrecy law to permit us to use, store, disclose, process and transfer all Customer Information in the manner described in these policy terms. You agree to inform us promptly in writing if you are not able or have failed to comply with the obligations set out in (v) and (vi) in any respect.
- (vii) Where:
 - you or a Connected Person fail(s) to provide promptly Customer Information reasonably requested by us, or
 - you or a Connected Person withhold(s) or withdraw(s) any consents that we may need to process, transfer or disclose Customer Information for the Purposes (except for purposes connected with marketing or promoting products and services to you), or
 - we have, or a member of the HSBC Group has, suspicions regarding Financial Crime or an associated risk,

we may:

- a. be unable to provide new, or continue to provide all or part of the Services to you;
- b. take actions necessary for us or a member of the HSBC Group to meet the Compliance Obligations; and/or

分享

- (iii) 如為用途需要及適當的，本公司可向下列人士轉移及披露任何客戶資料：(1) 收集個人資料聲明列出的接收者，而該等接收者亦可為用途使用、轉移及披露該等客戶資料及(2)附錄1(適用於非個人資料的客戶資料)列出的接收者。

閣下的責任

- (iv) 不時提供予本公司或滙豐集團成員的客戶資料如有任何變更，閣下同意從速(在任何情況下於30天內)以書面通知本公司。閣下亦同意從速回覆本公司或滙豐集團成員任何要求提供客戶資料。
- (v) 閣下確認其資料(包括個人資料或稅務資料)已被或會被提供予本公司或滙豐集團成員的每名關連人士已獲通知及同意(或在有關時候會獲通知及同意)其資料按本公司可不時修改或補充的本保單條款、附錄1及收集個人資料聲明所載使用、處理、披露及轉移。閣下及每名關連人士已(或在有關時候)閱讀及明白收集個人資料聲明。閣下須知會該等關連人士他們有權索取及改正其個人資料。
- (vi) 閣下同意本公司按本保單條款所述使用、儲存、披露、處理及轉移所有客戶資料，並會作出任何適用資料保障法律或保密法律不時要求的行動容許本公司如上述行事。如閣下未能或未有在任何方面遵守(v)及(vi)列出的責任，閣下同意從速以書面通知本公司。
- (vii) 如：
- 閣下或關連人士未有按本公司合理的要求從速提供客戶資料，或
 - 閣下或關連人士拒絕給予或撤回任何本公司為用途(不包括向閣下促銷或推廣產品及服務有關的用途)處理、轉移或披露客戶資料所需的任何同意，或
 - 本公司或滙豐集團成員就金融罪行或相關風險產生懷疑，
- 本公司可能：
- a. 未能向閣下提供新服務或繼續提供全部或部分服務；
 - b. 作出所需行動讓本公司或滙豐集團成員符合合規責任；及／或

- c. terminate this Policy if we reasonably consider that by continuing the Policy or the relationship with you we may break any Laws or we, or a member of the HSBC Group, may be exposed to action or censure from any Authority. Any termination will take effect as a surrender or rescission of the Policy.

In addition, if you fail to supply promptly your, or a Connected Person's, Tax Information and accompanying statements, waivers and consents as may be requested, then we may make our own decision with respect to your status or that of a Connected Person, including whether you or a Connected Person is reportable to a Tax Authority, and may require us or other persons to withhold amounts as may be legally required by any Tax Authority and paying such amounts to the appropriate Tax Authority.

(c) FINANCIAL CRIME RISK MANAGEMENT ACTIVITY

- (i) Financial Crime Risk Management Activity may include, but is not limited to: (A) screening, intercepting and investigating any instruction or communication by you or on your behalf or by a Connected Person or on their behalf; (B) investigating the source of or intended recipient of funds; (C) combining Customer Information with other related information in the possession of the HSBC Group; and (D) making further enquiries as to the status of a person or entity, whether they are subject to a sanctions regime, or confirming your or a Connected Person's identity and status.
- (ii) To the extent permissible by law, neither we nor any other member of HSBC Group shall be liable to you or any third party in respect of any loss (however it arose) that was suffered or incurred by you or a third party, caused in whole or in part in connection with the delaying, blocking or refusing of any payment or the provision of all or part of the Services or otherwise as a result of Financial Crime Risk Management Activity.

(d) TAX COMPLIANCE

You acknowledge that you are solely responsible for understanding and complying with your tax obligations (including but not limited to, tax payment or filing of returns or other required documentation relating to the payment of all relevant taxes) in all jurisdictions in which those obligations arise and relating to the opening and use of account(s) and the provision of Services. Certain territories may have tax legislation with extra-territorial effect regardless of your place of domicile, residence, citizenship or incorporation. Neither we nor any member of the HSBC Group provide tax advice. You are advised to seek independent legal and tax advice. Neither we nor any member of the HSBC Group have any responsibility in respect of your tax obligations in any jurisdiction which they may arise including any that may relate specifically to the opening and use of account(s) or Services provided by us and members of the HSBC Group.

(e) SURVIVAL UPON TERMINATION

This provision shall continue to apply notwithstanding the termination of the Services or the expiry of this Policy.

- c. 終止本保單若本公司合理地認為繼續維持本保單或與閣下的關係會使本公司違反法律，或任何權力機關可能對滙豐集團成員採取行動或提出譴責。任何終止會如本保單被退保或撤銷般生效。

另外，如閣下未有按要求從速提供閣下或關連人士的稅務資料及隨附陳述書、豁免書及同意書，本公司可自行決定有關閣下或關連人士的狀況，包括閣下或關連人士需否向稅務機關申報。本公司或其他人士可能被要求扣起任何稅務機關跟據法律要求的金額，並支付有關金額予適當的稅務機關。

(c) 金融罪行風險管理活動

- (i) 金融罪行風險管理活動包括但不限於：(A) 審查、攔截及調查閣下或關連人士(或代表彼等)發出的任何指示或通訊；(B) 調查款項的來源或預定收款人；(C) 組合客戶資料和滙豐集團持有的其他相關資料；及(D) 對個人或單位的狀況作進一步查詢(不論其是否受制裁制度約束)，或確認閣下或關連人士的身分及狀況。
- (ii) 在法律許可的情況下，對閣下或任何第三方就不論任何方式產生並蒙受或招致的，不論完全或部分跟延遲、阻截或拒絕支付任何付款或提供全部或部分服務相關或因進行金融罪行風險管理活動導致的任何損失，本公司及其他任何滙豐集團成員無需負責。

(d) 稅務合規

閣下承諾自行負責了解及符合閣下在所有司法管轄區有關及因開立及使用戶口及提供服務引起的稅務責任(包括但不限於繳稅，或提交報稅表或其他有關繳交所有相關稅項的所需文件)。某些地區的稅務法例具跨領域效用，不論閣下的居藉、住處、公民身分或成立地方。本公司及任何滙豐集團成員均不提供稅務意見。本公司建議閣下尋求獨立法律及稅務意見。閣下在任何司法管轄區可能引起的稅務責任，包括任何特別有關開立及使用戶口、或本公司及滙豐集團成員提供的服務的稅務責任，本公司及任何滙豐集團成員均無需負任何責任。

(e) 終止後繼續有效

即使服務終止或本保單到期，本條款繼續有效。

(f) MISCELLANEOUS

- (i) In the event of any conflict or inconsistency between any terms of this provision and the other terms of this Policy, the terms of this provision shall prevail.
- (ii) If all or any part of the provisions of the terms of this provision become illegal, invalid or unenforceable in any respect under the law of any jurisdiction, that shall not affect or impair the legality, validity or enforceability of such provision in any other jurisdictions or the remainder of the terms in that jurisdiction.

15. APPLICABLE LAW AND JURISDICTION

The terms and conditions of this Policy shall be governed by and construed in accordance with the laws of the Hong Kong SAR. In case of any dispute arising out of or in connection with this Policy, the exclusive jurisdiction of the Hong Kong SAR courts shall apply.

16. MISCELLANEOUS

If in our opinion it becomes impractical or inequitable to apply or operate any terms or conditions of this Policy due to a change in relevant legislation regulation, or in relevant political or business conditions which in our view materially affect the operation of this Policy, we may, without your agreement, amend the terms and conditions or their application in a manner which we in our discretion consider fair and reasonable. Any such amendment to the terms and conditions of this Policy will be written in and notified to you by way of an endorsement.

17. RIGHTS OF THIRD PARTIES

No person other than you and us will have any rights to enforce the provisions of this Policy.

18. POLICY SERVICING

This Policy is intended for sale only in the Hong Kong SAR. If you, or anyone else with authority over or otherwise connected to this Policy (such as the Life Insured or the Beneficiary) is temporarily or permanently:

- (i) outside of the Hong Kong SAR; or
- (ii) otherwise subject to the laws of any other place,

such that we reasonably believe that by complying with a particular term or condition we would breach any laws of the Hong Kong SAR or such other place, then we are entitled not to comply with such term or condition for any period of time we deem necessary, regardless of what such term or condition may provide. This might include declining to service some of your requests related to this Policy. You agree we will not be liable for any losses, damages, claims, liabilities or costs you or any other relevant person may suffer from our exercise of our rights under this provision. The prior sentence continues to apply even if this Policy terminates for any reason.

(f) 雜項

- (i) 本條款與本保單的其他條款如有任何衝突或不一致，概以本條款為準。
- (ii) 本條款中的全部或任何條文在任何司法管轄區的法律下在任何方面如變成非法、無效或不可強制執行，該條文在任何其他司法管轄區或本條款的其餘部分在該司法管轄區的合法性、有效性或可強制執行性均不受影響或損害。

15. 適用的法律及司法管轄權

本保單的條款及細則受香港特別行政區法律管轄並據其解釋。就本保單而引起或有關本保單的任何爭議，香港特別行政區法院擁有專屬司法管轄權。

16. 雜項

倘若由於有關的法例或規例改變，以致本公司認為不能有效或公平地繼續履行保單的條款；或在有關的政治或商業情況下，本公司相信將會嚴重影響保單的運作，本公司可酌情決定按照公平和合理的原則在未經閣下同意下修訂有關條款。有關保單條款的任何修訂將於批註中列明，並通知閣下。

17. 第三者權益

除閣下及本公司以外，並無其他人士有權強制執行本保單條款。

18. 保單服務

本保單僅擬在香港特別行政區銷售。倘若閣下或對本保單享有權力或在其他方面與本保單有關的任何人士(例如是受保人或受益人)暫時性或永久性：

- (i) 身在香港特別行政區境外；或
- (ii) 以任何其他方式受任何其他地方的法律管轄；

以致本公司合理地相信，透過遵守某一項條款或條件，本公司將會違反香港特別行政區或該地方的法律，則本公司有權在本公司認為必要的期間內不遵守該項條款或條件，不論該項條款或條件的規定為何。這可能包括拒絕向閣下提供閣下所要求的與本保單有關的某些服務。

閣下同意，對於因本公司行使本條款之下的權利而使閣下或任何有關人士遭受的損失、賠償、索償、債務或費用，本公司將無須負責。即使本保單因任何原因而終止，上一句將繼續適用。

B. MATURITY PROVISIONS

If the Life Insured is alive and this Policy is in force on the Benefit Cessation Date of the Basic Plan, we will pay the Guaranteed Cash Value in one lump sum to the Policyholder in accordance with provision A13. The receipt of the above amount by the Policyholder or the estate of the Policyholder (where applicable) will discharge us from any further liability under this Policy.

APPENDIX 1

The following terms supplement the provision in the policy terms entitled "Collection and Use of Customer Information, Financial Crime Risk Management Activity and Tax Compliance" and relate to the use, store, process, transfer and disclosure of Customer Information other than Personal Data. Terms used in this Appendix 1 shall have the meanings set out in that provision.

USE OF CUSTOMER INFORMATION OTHER THAN PERSONAL DATA

The purposes for which Customer Information (other than Personal Data) may be used are as follows:

- (1) processing, assessing and/or approving applications for and any alterations, variations, cancellation, renewals and reinstatements of products and services;
- (2) verifying and conducting any eligibility, identity, medical and/or underwriting in connection with provision of products and/or services;
- (3) offering, providing, maintaining, reviewing, administering and evaluating products and/or services including processing any claims or investigation or analysis of such claims;
- (4) marketing, designing, improving or promoting Services or related products to you (and to Connected Persons to the extent permissible by Laws) and conducting market research;
- (5) exercising any right of subrogation;
- (6) enabling an actual or proposed assignee, transferee or participant or sub-participant of our rights to evaluate the transaction intended to be the subject of the assignment, transfer, participation or sub-participation;
- (7) complying with any obligations, requirements or arrangements, whether compulsory or voluntary, of us or any member of the HSBC Group to comply with, or in connection with any Compliance Obligations;
- (8) conducting Financial Crime Risk Management Activity;
- (9) meeting any obligations, demand or request from Authorities;
- (10) exercising any rights we or a member of the HSBC Group may have in connection with the products or services provided to you;
- (11) maintaining HSBC Group's or our overall relationship with you; and
- (12) any purposes relating or incidental to any of the above.

乙 期滿條款

若本保單於基本計劃之保障終止日仍然生效而受保人仍然在生，本公司將依照第甲13項條款一筆過支付保證現金價值予保單持有人。保單持有人或保單持有人的遺產承繼人(如適用)於收取以上金額後，本公司就本保單的任何責任即獲解除。

附錄1

下列條款關於使用、儲存、處理、轉移及披露非個人資料的客戶資料，並補充保單條款的條款(收集及使用客戶資料，金融罪行風險管理活動及稅務合規)。出現於本附錄1的定義詞語具有該條款列出的涵義。

使用非個人資料的客戶資料

非個人資料的客戶資料可被用作下列用途：

- (1) 處理、評估及／或審批產品和服務的申請，及任何產品及服務的修改、更改、取消、續期或復效申請；
- (2) 為提供產品及／或服務進行有關查核及資格審查、身分識認、健康評估及／或評保；
- (3) 提議、提供、維持、檢討、管理及評估產品及／或服務，包括處理任何索償，或該等索償的調查或分析；
- (4) 向閣下(及如法律許可，關連人士)促銷、設計、改善或推廣服務或相關產品及進行市場調查；
- (5) 行使任何代位權；
- (6) 允許本公司的實際或建議承讓人、受讓人，或本公司的權益的參與人或附屬參與人，就涉及的轉讓、出讓、參與或附屬參與的交易進行評估；
- (7) 遵守本公司或任何滙豐集團成員就任何合規責任或與之有關的任何責任、要求或安排(不論強制或自願性質)；
- (8) 進行金融罪行風險管理活動；
- (9) 遵守權力機關施加的任何責任、指令或要求；
- (10) 行使本公司或滙豐集團成員就向閣下提供的產品或服務享有的任何權利；
- (11) 維持滙豐集團或本公司與閣下的整體關係；及
- (12) 與任何上述相關或有連帶關係的用途。

SHARING AND TRANSFER OF CUSTOMER INFORMATION OTHER THAN PERSONAL DATA

We may (as necessary and appropriate for all or any of the Purposes) transfer, share, exchange and/or disclose any Customer Information (other than Personal Data) to all such persons as we may consider necessary (wherever located) including without limitation:

- (a) any member of the HSBC Group;
- (b) any agents, contractors, sub-contractors, service providers, reinsurers or associates of the HSBC Group (including their employees, directors, officers, agents, contractors, service providers and professional advisers);
- (c) any Authorities;
- (d) any party involved in any business transfer, disposal, merger or acquisition by us or any member of the HSBC Group;
- (e) any person to or with whom we or any member of the HSBC Group is under an obligation or required or expected to make disclosure or use data for the purposes set out in paragraph 7, 8 or 9 above;
- (f) anyone acting on behalf of you, payment recipients, beneficiaries, account nominees, intermediary, correspondent and agent banks, clearing houses, clearing or settlement systems, market counterparties, upstream withholding agents, swap or trade repositories, stock exchanges, companies in which you have an interest in securities (where such securities are held by us or any member of the HSBC Group for you); and
- (g) any party acquiring an interest in or assuming risk in or in connection with the Services.

分享及轉移非個人資料的客戶資料

如為所有或任何用途需要及適當的，本公司可向本公司認為所需的所有人士（不論所在處）轉移、分享、交換及／或披露非個人資料的客戶資料，包括但不限於：

- (a) 任何滙豐集團成員；
- (b) 滙豐集團的任何代理、承包商、次承包商、服務供應商、再保人或聯營人士（包括彼等的僱員、董事、職員、代理人、承包商、服務供應商及專業顧問）；
- (c) 任何權力機關；
- (d) 涉及本公司或任何滙豐集團成員的任何業務轉讓、出讓、合併或收購的任何一方；
- (e) 就上述第(7)、(8)或(9)項所載的目的本公司或任何滙豐集團成員負有責任或必須或被期望向其作出披露或與其使用資料的任何人士；
- (f) 代表閣下行事的任何人士、收款人、受益人、戶口代名人、中介人、往來及代理銀行、結算公司、結算或交收系統、市場交易對手、上游預扣稅代理、掉期或交易儲存庫、證券交易所、閣下擁有證券權益的公司（如該等證券由本公司或任何滙豐集團成員代閣下持有）；及
- (g) 就或有關收購服務權益及承擔服務風險的任何一方。